

# Surendra Kumar v. State of U.P.

Allahabad High Court · Division Bench · 28 February 2023 · Writ-C No. 39618 of 2022 · **Writ disposed; fresh representation to be decided under Supply Code cl. 6.1.**

## HEADNOTE

On a writ challenging a CGRF direction to deposit Rs 63,360 after a 1 kW Saubhagya connection was billed at 2 kW, the Allahabad High Court, without examining the Forum order or the load/billing dispute, disposed of the petition by consent and directed the consumer to file a fresh representation to be considered strictly under clause 6.1 of the U.P. Electricity Supply Code, 2005.

## FACTUAL SUMMARY

Surendra Kumar received a 1 kW Saubhagya connection from Purvanchal Vidyut Vitran Nigam Limited on 6 September 2019. The department then billed him for 2 kW from 31 October 2019. He complained to the Consumer Grievance Redressal Forum, Vindhyachal Mandal, Mirzapur (Complaint No. 659 of 2020). On 5 September 2022 the Forum directed him to deposit Rs 63,360. A later representation dated 29 November 2022 to the licensee remained pending. He sought quashing of the Forum order and a correct 1 kW bill.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.1

billing-representation

#### HOLDING

With consent, the writ challenging a CGRF direction to deposit Rs 63,360 on a 1 kW Saubhagya connection billed at 2 kW was disposed of without examining the Forum order. The consumer was to file a fresh representation within three weeks for consideration strictly under clause 6.1 of the U.P. Electricity Supply Code, 2005, the licensee remaining free to proceed in accordance with law. ¶ 3

**FLAG** Order cites 'section 6.1' of the U.P. Electricity Supply Code, 2005 without quoting its text; clause number taken as stated.

## PRINCIPLE TAGS

**UP-2005::6.1** Licensee counsel accepted that a pending representation would be dealt with strictly under clause 6.1. The Court disposed of the writ on that concession, directing a fresh representation to be considered under the same clause, without construing 6.1 or deciding the CGRF order. ¶ 3

## NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — VALIDITY OF THE CGRF ORDER DATED 05.09.2022 DIRECTING DEPOSIT OF RS 63,360**

¶ 2-3

**NOT DECIDED — WHETHER BILLING A 1 KW SAUBHAGYA CONNECTION AT 2 KW WAS LAWFUL**

¶ 2

**NOT DECIDED — WHETHER A CORRECT 1 KW BILL MUST ISSUE**

¶ 2-3

